

Calendar Line 6

Case Name: *Running v. United Security Specialists, Inc.*
Case No.: 23CV423933

This is a putative class and representative wage-and-hour action brought by plaintiff Tim Running (“Plaintiff”) against defendant United Security Specialists, Inc. (“USS”). According to the parties’ Joint Case Management Conference Statement filed January 7, 2026, Plaintiff’s individual claims have been submitted to arbitration and his claims under the Private Attorneys General Act are stayed pending completion of that arbitration. Counsel of record for USS, Courtney C. Wenrick of Womble Bond Dickinson (US) LLP (“Counsel”), has filed a motion to be relieved as counsel. No opposition has been filed. As discussed below, the Court GRANTS the motion.

I. Legal Standard

Motions to be relieved as counsel are technical and governed by rule 3.1362 of California Rules of Court (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b).) Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).”¹ (Rule 3.1362(c).)

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)). Rule 3.1362(d) sets forth the service requirements, as follows:

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

¹ Code of Civil Procedure section 284 provides, “The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: [¶] 1. Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; [¶] 2. Upon the order of the court, upon the application of either client or attorney, after notice one to the other.”

- (A) The service address is the current residence or business address of the client;
or
- (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

II. Discussion

Counsel attests that on January 27, 2026, Kyle Madej, Counsel's primary contact for USS, informed Counsel that USS had gone out of business, and that on February 25, 2026, Mr. Madej confirmed USS was out of business with no revenue and no employees. Counsel further attests that USS is in breach of the parties' engagement agreement and will not be able to remedy those breaches, and that USS is no longer able to actively participate in this litigation, making it unreasonably difficult for Counsel to carry out the representation effectively. Counsel has forwarded all pending dates in this matter to Counsel's contacts at USS. (Counsel's Declaration, MC-052, ¶ 2.)

Counsel attests that Counsel served USS by mail at the client's last known address with copies of the motion papers, and that Counsel confirmed by conversation within the past 30 days that the address is current. (*Id.* at ¶ 3(a)(2), (b)(1)(c).) The proof of service reflects that the motion, the supporting declaration, and the proposed order were served on the client by mail and by electronic mail on March 12, 2026, and served on Plaintiff's counsel by the same means. Counsel has provided the motion, the supporting declaration, and the proposed order on the appropriate Judicial Council forms (MC-051, MC-052, and MC-053).

The Court finds that Counsel has served the client by mail, submitted a declaration establishing that the requirements of Rule 3.1362 have been satisfied, shown sufficient reason why the motion to be relieved as counsel should be granted, and shown why Counsel brought the instant motion under Code of Civil Procedure section 284(2) instead of filing a consent under section 284(1).

Two matters concerning the proposed order require correction. First, the proposed order identifies the next scheduled hearing as a Case Management Conference on May 20, 2026, a date that has now passed. Rule 3.1362(e) requires that the order specify all hearing dates scheduled in the action, including the date of trial if known, and provides that if no hearing date is presently scheduled the court may set one and specify the date in the order. Trial has not been set. (Counsel's Declaration, MC-052, ¶ 6(a).) The Court therefore sets a Case Management Conference for November 4, 2026 at 2:30 p.m. in Department 8, together with an Order to Show Cause described below, and directs Counsel to lodge a revised proposed order on form MC-053 specifying that date at item 7 and reflecting that no trial date is set at item 9.

The Court further notes that USS is a corporation. (Notice of Motion and Motion, MC-051, ¶ 4(b).) A corporation may not represent itself in a court of record, either in propria persona or through an officer or agent who is not an attorney. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729-730; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.) USS must therefore retain new counsel to appear on its behalf. USS's failure to retain new counsel prior to the Case Management Conference may result in an order striking its pleadings or the entry of a default judgment against it.

The Court therefore issues an Order to Show Cause, returnable on November 4, 2026 at 2:30 p.m. in Department 8, why the answer of United Security Specialists, Inc. should not be stricken on the ground that it is a corporation appearing without counsel. USS may discharge the Order to Show Cause by causing new counsel to appear on its behalf on or before that date. No sanction will be issued on the return date without further consideration of the status of the pending arbitration and the stay of the representative claims, which the Court will take up at the Case Management Conference set for the same date. Nothing in this order limits Plaintiff's right to seek relief by noticed motion.

Counsel shall serve a copy of the signed order relieving counsel and a copy of the Order to Show Cause on United Security Specialists, Inc. at the address specified at item 6 of the order, and on all parties that have appeared in this action, and shall file proof of that service. The clerk shall also serve a copy of the Order to Show Cause on United Security Specialists, Inc. at that address.

Accordingly, the motion is GRANTED. Counsel is relieved as counsel of record for USS effective upon the filing of the proof of service of the signed order upon the client. (Cal. Rules of Court, rule 3.1362(e); Proposed Order, MC-053, ¶ 5(a).)

III. Conclusion

The motion of Courtney C. Wenrick and Womble Bond Dickinson (US) LLP to be relieved as counsel of record for defendant United Security Specialists, Inc. is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. Counsel shall lodge a revised proposed order on Judicial Council form MC-053 that conforms to this order, and shall serve a copy of the signed order on the client and on all parties that have appeared in this action. The Court sets a Case Management Conference for November 4, 2026 at 2:30 p.m. in Department 8. The Court further issues an Order to Show Cause, returnable the same date, why the answer of United Security Specialists, Inc. should not be stricken on the ground that it is a corporation appearing without counsel. United Security Specialists, Inc. may discharge the Order to Show Cause by causing new counsel to appear on its behalf on or before that date.

Case Management Conference at 2:30 p.m. on August 19, 2026 is VACATED.

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Case Name: *Good Samaritan Hospital, L.P. et al. v. Kaiser Foundation Health Plan, Inc.*
Case No.: 23CV427314

I. Introduction

Plaintiffs Good Samaritan Hospital, L.P.; San Jose Healthcare System, L.P.; Los Robles Regional Medical Center; Riverside Healthcare System, L.P.; and West Hills Hospital (the “Hospitals”) sued defendant Kaiser Foundation Health Plan, Inc. (“Kaiser”) on December 5, 2023.

Between June 29 and August 3, 2026, in connection with the Hospitals’ motion for summary adjudication as to certain of Kaiser’s affirmative defenses (the “MSA”) and the parties’ respective motions in limine (the “MILs”), the parties filed fourteen motions and applications to seal (the “Sealing Requests”). The parties have since agreed to resolve this matter, and the trial date has been vacated. The Sealing Requests appear to be the last law and motion matters remaining before the Court.

Having reviewed the Sealing Requests, the declarations supporting each, the stipulated protective order entered March 7, 2024 (the “Protective Order”), and the materials lodged conditionally under seal, the Court GRANTS the Sealing Requests in substantial part, CONDITIONALLY GRANTS them in part, and DEFERS ruling in two limited respects.

II. The Sealing Requests

No.	Filed	Short form	Materials	Supporting declaration
1	6/29/26	Hospitals’ MIL Application	Materials filed with the Hospitals’ MILs 1–10	Barnhart
2	6/29/26	Kaiser’s MIL Motion	Kaiser’s MILs 1, 2, 6 and supporting exhibits	Reiter
3	7/6/26	Kaiser’s MSA and MIL Motion	Portions of the Hospitals’ MSA and MILs 1–10 and supporting exhibits	Reiter
4	7/9/26	Hospitals’ Kaiser-MIL Application	Materials lodged by Kaiser with Kaiser’s MILs 1–6	Barnhart